

Introduction to Constitution

Definition and Importance of Constitution

What is called a constitution?

- A rule Book
- Supreme Law of the land



Key features of a constitution

Type of a constitution:

Written or Oral

Flexibility or rigidity

Supremacy of Law

Lays out fundamental principles, values and aspirations for a society

Key Features Continue.....

Rule of Law: No one is above the law

Defines Structure of the government

Rights and Duties of the citizens

World history of Constitution

Ancient or Classic Roots

- Two humans' interaction
- Code of *Ur-Nammu* and Code of *Hammurabi*
    - 2050 BC & 1754 BC

World History Continue.....

- **Greek City States:** 5th century BC
  - **Draco's Code: (621 BC)** A Harsh set or rules
  - **Roman Republic**: (450 BC) Developed complex rules, elected bodies and representations
  - **Aristotle (350 BC)** He gave Classified and systematic study of diff forms of Govt
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History continue.....

- **Medieval Period**
  - **Islamic Laws**
  - 7th century Constitution of Medina,
  - Rules set by Prophet PBUH
  - **Magna Carta** 1215AD**:** To cut down King's powers

World History Continue.....

Early Modern Period



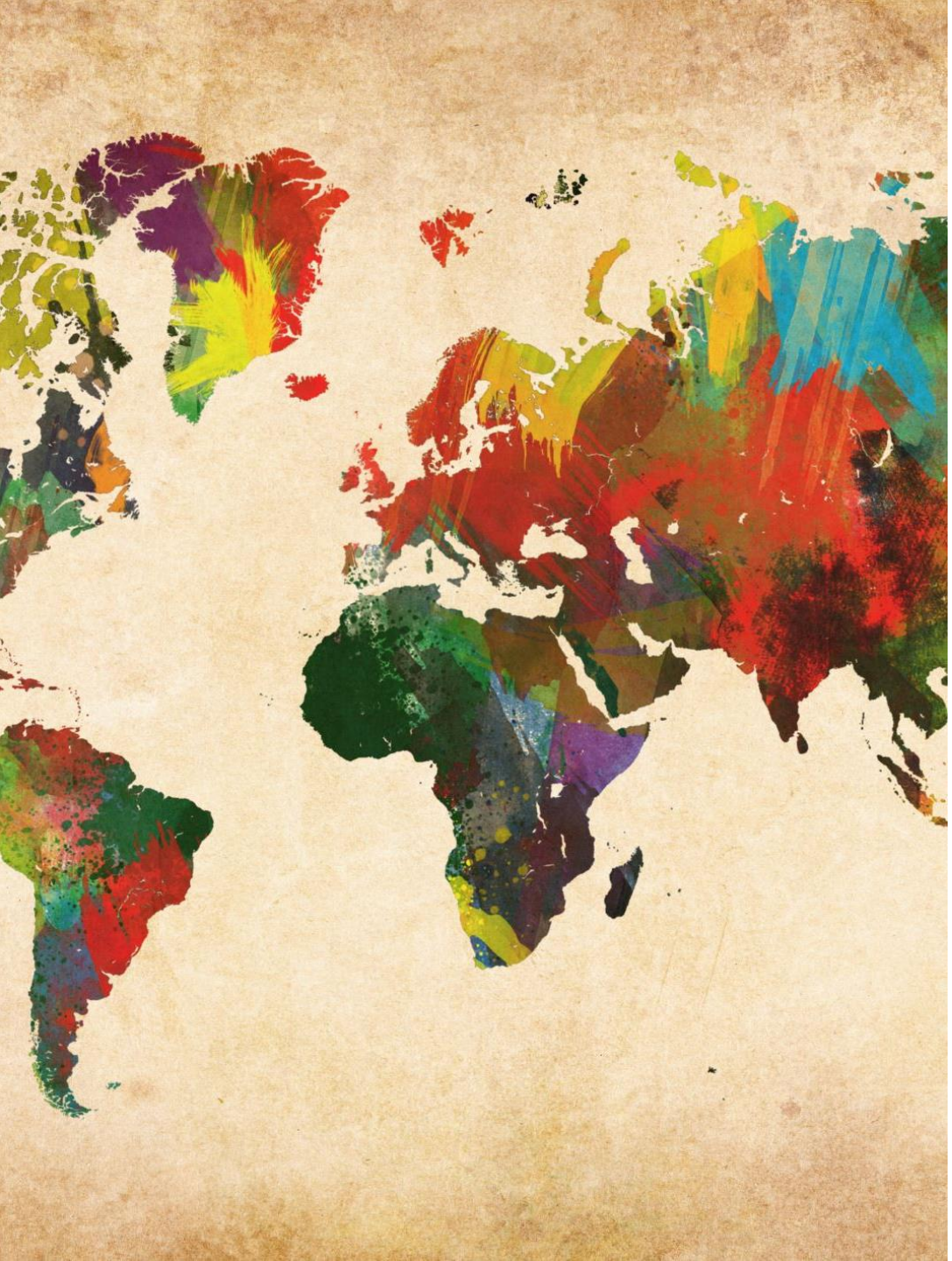




United States 1787

Enlightenment Rousseau, Lock, Montesquieu talked about liberty and separation of Powers institutionally

Social Contract Theory



20th Century Constitutions

World Wars and their Impacts:

- Increased emphasis on Human rights
- Shifts in governmental Structures and
- Establishment of New democracies

20th century.....

Decolonization

- States in South Africa, Asia and Latin America

Cold War Impacts: Competing Ideologies like Communism and Capitalism

21st Century or Contemporary trends

- **Democratic Transitions**:
  - Separation of powers
    - Executive, Legislature, Judiciary
    - Central Authority
  - Rights to Liberty, speech, health, Education

21st Century or Contemporary trends

